

compromise. Thus, counsel should appear with a copy of the attorney fee agreement for the Court's review.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Elizabeth Saldivar v. George Loudis et al

25CV000506

MOTION TO BE RELIEVED AS COUNSEL

APPEARANCE REQUIRED

The Court has reviewed the Declaration of William Eason filed on July 27, 2026. That Declaration provides information regarding efforts at locating Plaintiff Elizabeth Saldivar. This is fundamentally inconsistent with the Declaration, of Katelyn P. Dembowski, in Support of Attorney's Motion to be Relieved as Counsel filed on May 26, 2026. Specifically, Ms. Dembowski declares under penalty of perjury "[a]ttorney has personally served the client with copies of the motion papers filed with this declaration. A copy of the proof of service will be filed with the court at least 5 days before the hearing." There is no such proof of service in the Court's file.

Moreover, the Court notes that the Judicial Council form Attorney Declaration provides a box corresponding to "[a]ttorney has been unable to confirm that the address is current or to locate a more current address for the client . . ." That box was *not* checked in Ms. Dembowski's Declaration.

Counsel is directed to appear to explain the foregoing inconsistencies to the Court.

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M. David Jester v. Matthew Ospeck et al

25CV002143

MOTION TO COMPEL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, FROM DEFENDANT THE KNOLLS, L.C. AND REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING: The motion is DENIED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff David Jester moves, pursuant to California Code of Civil Procedure sections 2030.290, subdivision (b), 2031.300, subdivision (b), 2023.010, 2023.030, and 2030.290, “for an Order compelling Defendant THE KNOLLS, L.C. . . . to respond to Plaintiff’s Request for Production of Documents, Set No. One propounded on The Knolls on November 13, 2026 . . .”¹ (Notice of Motion at 2:4-6.) Plaintiff also requests an award of monetary sanctions against The Knolls in the amount of \$12,412.00.

“‘It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) . . . that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

Given the foregoing, it is axiomatic that a party who moves the Court to intervene in a discovery dispute has a threshold burden of describing the dispute with sufficient specificity to permit the court to understand precisely what information or materials the moving party seeks to discover.

As quoted above, the Notice of Motion seeks an order compelling The Knolls to respond to a Request for Production of Documents. Consistent therewith, the statute cited, Section 2031.300, governs a motion to compel based on a parties’ failure to serve a timely response to a production demand (as opposed to a motion to compel *further* responses, which is governed by Section 2030.310.) The [Proposed] Order is also consistent with this request, providing that “The Knolls shall provide full and complete responses, without objections, to Plaintiff’s Request for Production of Documents, Set No. One, including production of responsive documents . . .” (*Id.* at 2:11-13.)

However, Mr. Jester concedes that “Defendant served its unverified responses to Written Discovery, Set One on January 20, 2026. Defendant served verifications for Written Discovery, Set One on February 9, 2026.” (Declaration of Sarah Hirschfeld-Sussman at ¶ 4.) The phrase “Written Discovery” is defined to include the subject Request for Production, Set One. (See *id.* at ¶ 2.)

Based on the foregoing, it appears that The Knolls *has* responded to the subject discovery.

Through the Memorandum filed in support of the Motion, Mr. Jester argues that The Knolls should be ordered to produce additional documents, and to serve an amended response. (See, *e.g.*, *id.* at 5:15-16 [“The Knolls served responses indicating it would comply with the requests, and produced a limited set of documents, however, Defendant’s production is plainly incomplete”].) The moving papers fail to support the argument.

¹ All statutory references herein are to the Code of Civil Procedure unless otherwise noted.

First, “[a]ny motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement.” (Cal. Rules of Court, rule 3.1345.) No Separate Statement was filed in support of the instant motion.

Second, the burden on the propounding party is higher for a motion seeking to compel a further response than it is for a motion seeking a response in the first instance. The former motion must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) Mr. Jester fails to make *any* showing of good cause justifying the discovery sought. Mr. Jester fails even to provide the Court with a copy of the subject discovery requests.

Third, Mr. Jester fails to make a sufficient showing in support of its request for an order compelling The Knolls to produce additional documents in response to the discovery request. Again, Mr. Jester fails to provide the Court with a Separate Statement, a copy of the discovery request, and/or a copy of the response to the discovery request. Mr. Jester also fails to provide the Court with: (a) a detailed description of the documents produced; (b) a detailed description of the documents withheld; and/or (c) a discussion of why any withheld documents must be produced (*e.g.*, which requests they are responsive to and a showing of good cause in support of such requests.)

Based on the foregoing, the Motion is DENIED.

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Insurance Commissioner of the State of California v.
First American Title Company of Napa, et al.

25CV002569

APPLICATION FOR ORDER AUTHORIZING SALE

TENTATIVE RULING: The Application is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff Insurance Commissioner of the State of California (“Petitioner”) in his capacity as Conservator of First American Title Company of Napa (“FA Napa”) moves, pursuant to Insurance Code section 1037, subdivision (d),² for an order approving, and authorizing Petitioner

² All subsequent statutory references are to the Insurance Code unless otherwise specified.